



Palmetto Coordinated System of Care Waiver Self-Direction Service Delivery Option Terms and Conditions of Participation

Waiver Participant:

Parent/Guardian (if applicable):

Medicaid Number:

Purpose:

Self-Direction is a service delivery option available to Palmetto Coordinated System of Care (PCSC) waiver participants. This option gives the participant/family the opportunity to decide how needs will be met. Wraparound Facilitators (WF) explain the benefits and responsibilities of self-direction to the waiver participant/family. The participant/family may choose to exercise this option during initial service plan development or at any time during waiver enrollment.

Individual Directed Goods and Services (IDGS) is one of three services included in the PCSC waiver. However, the self-direction service delivery option is only available for IDGS which must be included in the PCSC waiver plan of care.

The participant/family must meet all requirements and follow all waiver policies, the plan of care and the conditions outlined below.

Terms and Conditions:

- A. **Maximum Lifetime Limit.** The cost of the identified and approved items must be funded within the participant's \$2,000 maximum lifetime limit. Request for changes to the lifetime budget are reviewed at the state level. Administrative costs associated with the purchase of items identified on the plan of care will not be deducted from the individual/participant's budget.
- B. **Freedom of Choice.** The participant/family may choose to use IDGS funds when the request meets a need on the plan of care, decreases the need for other Medicaid services, supports inclusion in the community, increases participant safety in the home, and cannot be met by another source. When an item is included on the plan of care, the participant/family will have the freedom to select the specific item required to meet the identified need provided the cost is within the \$2,000 lifetime maximum limit.
- C. **Communication Requirements.** The participant/family must communicate with the WF regarding the self-direction service delivery option. Once funds are received, the participant/family must communicate with the WF to track the remaining balance of the \$2,000 maximum lifetime limit.
- D. **Good Faith Purchasing.** The participant/family must agree to purchase items for the approved immediate and primary use by the PCSC waiver participant.

The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.





- E. Continued Eligibility. A participant may be ineligible to self-direct IDGS if:
- The participant is determined to no longer be eligible to receive PCSC waiver case management.
 - The participant has not received PCSC waiver case management for more than thirty (30) consecutive days.
 - The participant/family knowingly commits fraudulent activities and/or misuses IDGS funds.

Termination:

Termination from the Self-Directed service delivery option may be initiated by the participant/family or the WF. A participant can be terminated from the Self-Direction service delivery option and remain enrolled in the PCSC Waiver. However, a PCSC waiver participant must receive the waiver case management service delivered by a WF to be eligible for other PCSC waiver services including IDGS.

Termination from the Self-Direction Service Delivery Option

Termination from the self-directed service delivery option can be initiated at any time during the enrollment period. Termination categories are defined below.

- Participant/Family-Initiated Termination.** Participant/Family-Initiated Termination of the Self-Direction service occurs when the participant/family freely chooses to discontinue self-directing the IDGS waiver service.
- Wraparound Facilitator-Initiated Termination.** Wraparound Facilitator-Initiated Termination of the Self-Direction service occurs due to failure of the participant/family to meet the requirements and responsibilities of self-directing the IDGS waiver service. The WF may also initiate termination of the service delivery option if a threat to participant health and safety is identified.

The following steps must be completed before the self-direction service delivery option can be terminated:

- WF updates the plan of care with progress on goals
- WF updates client record with remaining balance of lifetime limit
- WF updates client record with alternative resources to meet the identified need
- WF secures participant/family signature acknowledging remaining lifetime limit balance and alternative resources.

Reinstating the Self-Direction Service Delivery Option

The Participant/Family may request to select the self-direction service delivery option after a Wraparound Facilitator-initiated termination. However, the participant/family who has been terminated from the self-directed service delivery option due to fraud or misuse of funds, must be re-assessed by the WF to determine if the service delivery option will be reinstated during the enrollment period.

The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.



Reinstating the Self-Direction Service Delivery Option After Disenrollment

When a participant/family who previously self-directed IDGS disenrolls and re-applies to the waiver, all waiver eligibility requirements must be met for the new enrollment period. Additionally, the participant/family must re-qualify for the self-direction service delivery option.

When a Wraparound Facilitator-initiated termination has been completed for a participant due to fraud or misuse of funds, the WF will determine if the family member involved in the fraud or misuse of funds may self-direct the service delivery option for another PCSC waiver participant such as a sibling or member of the household.

Appeals:

The participant and/or representative has been informed of the opportunity and means of requesting a fair hearing outlined on page 4 and 5 of this document.

The Participant/Family fully understands and agrees to follow all waiver policies, the plan of care and the conditions for participation in the self-direction service delivery option of IDGS. The participant/family has also been made aware of the SCDHHS appeals process.

Participant Name

Parent/Guardian Name (if applicable)

Participant Signature

Date

Parent/Guardian Signature (if applicable)

Date

The Wraparound Facilitator fully understands and agrees to follow all waiver policies, the plan of care and the conditions for assessing the participant/family ability to participate in the self-direction service delivery option of IDGS. The Wraparound Facilitator has explained the SCDHHS appeals process to the participant/family.

Wraparound Facilitator Name

Wraparound Facilitator Signature

Date

The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.



SCDHHS MEDICAID APPEAL PROCESS

If the participant, legal guardian or representative is dissatisfied with a Palmetto Coordinated System of Care (PCSC) waiver decision regarding the self-direction service delivery option for IDGS, the participant, legal guardian or representative has the right to request an appeal with the State Medicaid Agency, which is the South Carolina Department of Health and Human Services (SCDHHS).

The purpose of a SCDHHS administrative appeal is to prove error(s) in fact or law pertaining to a decision made and/or action taken by the SC Continuum of Care on behalf of PCSC or by PCSC that adversely affects a waiver participant. The appeal must clearly state the specific issue(s) that are disputed and what action is requested. A copy of the self-directed service delivery decision received from PCSC must be uploaded using the SCDHHS website below or included with the mailed appeal.

The participant, legal guardian or representative is encouraged to file the appeal electronically at www.scdhhs.gov/appeals.

OR

The appeal may be submitted by using the number below:

Fax to (803) 255-8206

OR

The appeal request may be mailed to:

**SC Department of Health and Human Services
Division of Appeals and Hearings
P.O. Box 8206
Columbia, SC 29202-8206**

The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.



An appeal request to SCDHHS is valid if filed electronically or mailed to the above address and postmarked no later than the thirtieth (30th) calendar day following receipt of the PCSC waiver self-directed service delivery option decision notification. Unless a valid appeal request is made to SCDHHS, the self-directed service delivery decision will be final and binding.

A participant may request an expedited appeal. SCDHHS will grant or deny these requests as quickly as possible. If your request to expedite the appeal is granted, your appeal will be resolved as quickly as possible instead of the standard 90-day timeframe. If the request to expedite is denied, the appeal will follow the standard 90-day timeframe.

SCDHHS may grant expedited review if we determine the standard appeal timeframe could jeopardize the individual's life, health, or ability to attain, maintain, or regain maximum function. SCDHHS may consider, among other facts:

- The medical urgency of the beneficiary's situation
- Whether a needed procedure has already been scheduled
- Whether a beneficiary is unable to schedule a needed procedure due to lack of coverage
- Whether other insurance will cover most of the costs of the requested treatment.

You may request an expedited appeal at the same time you file your appeal request or after you file an appeal. Please state you are requesting an expedited appeal and explain why.

To avoid delays in the process, please submit any supporting documentation with the request for expedited review or immediately thereafter. While supporting documentation is not required, SCDHHS will make its determination based on the information made available at the time we consider the request.

If a valid appeal request is made, the participant, legal guardian or representative will be advised by the SCDHHS Division of Appeals and Hearings as to the status of the appeal request, which may include a scheduled hearing.

The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.